

PUBLIC VERSION

CONFIDENTIAL MATERIALS

EXCLUDED

Docket No. 16-02

**RESPONDENT'S COUNTER PROPOSED FINDINGS OF FACT ON
COMPLAINANT'S MOTION FOR SUMMARY JUDGMENT**

THE FEDERAL MARITIME COMMISSION
800 North Capitol Street, NW, Washington, D.C.

D. F. YOUNG, INC.,
Complainant,
v.
NYK LINE (NORTH AMERICA)
INC.,
Respondent.

DOCKET NO. 16-02

**RESPONDENT’S COUNTER
PROPOSED FINDINGS OF FACT
ON COMPLAINANT’S MOTION
FOR SUMMARY JUDGMENT.**

As used in these Counter Proposed Findings, “DFY” means the Complainant, and
“NYK” means the Respondent.

POWER OF ATTORNEY AND PREPARATION AND PROCESSING OF BILL OF LADING

1. NYK has its own Documentation Team in a suburb of Chicago headed by Stacy
Southard. *RX-174:8-25; RX-255 to 256; RX-285:21 to RX-286:20-21.*

2. [REDACTED]
[REDACTED]
[REDACTED]

3. [REDACTED]
[REDACTED]
[REDACTED]

4. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

5.
6.
7.
8.
9.
10.

11.

[REDACTED]

12.

[REDACTED]

13.

[REDACTED]

14.

[REDACTED]

15.

[REDACTED]

16.

[REDACTED]

17.

18.

19.

ENGAGE, BOOK, SECURE RESERVE OR CONTRACT DIRECTLY WITH THE CARRIER FOR SPACE ABOARD A VESSEL OR CONFIRMED THE AVAILABILITY OF SUCH SPACE.

20. In order to obtain forwarder compensation from a carrier, a forwarder must provide proof that it performed the services set out in 46 C.F.R. 515.42(C)(1-2).

Subpara. (c)(2) is dealt with in paras. 1-19 supra. Subpara. (c)(1) of the Regulation requires that the forwarder must have:

Engaged, booked, secured, reserved or contracted directly with the carrier or its agent for space aboard a vessel or confirmed the availability of that space.

The critical word in the above regulation is "space".

21. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

22. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

23. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

24. [REDACTED]
[REDACTED]

25. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
26. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
27. [REDACTED]
[REDACTED]
28. [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
29. [REDACTED]
[REDACTED]
30. [REDACTED]
[REDACTED]

31.

32. DFY had nothing to do with the actual engaging, booking, securing, reserving, or contracting for space aboard NYK's vessels or with confirming the availability of that space.

Dated: White Plains, NY, January 30, 2017

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